

- (d) In paragraph (b) of subsection (1) of section two hundred and twenty-two (relating to the disposal of books and papers) for the words "in such way as the company by extraordinary resolution directs" there shall be substituted "in such way as the Board of Trade may direct";
- (e) The Board of Trade may confer on the liquidator the like power as to conveying or transferring property as they are by subsection (2) of section one of the principal Act authorised to confer on a controller appointed under that Act;
- (f) The provisions of subsection (3) of section one of the principal Act giving priority to unsecured creditors who are not enemies, and as to the payment and transfer of enemy property to the custodian and the manner in which such property is to be dealt with by him, and the provisions of subsection (4) of the same section which relate to the allocation of property in enemy territory to the satisfaction of liabilities to and claims of persons in enemy territory, and the provisions of paragraph (d) of section five of this Act shall, with the necessary adaptations, apply to the winding up of the company;
- (g) The provisions of subsection (5) of section one of the principal Act as to the release of a controller appointed under that Act shall apply to the release of the liquidator;
- (h) An application for the stay of proceedings in the winding up shall not be made without the consent of the Board of Trade;
- (i) The liquidator shall submit accounts to the Board of Trade at such times and in such manner as they may direct;
- (j) The provisions of subsection (7) of section one of the principal Act, including the power of the Board of Trade to present a petition for the winding up of the company by the court, shall continue to apply in respect of the company, notwithstanding the making of an order under section one of this Act.

CHAPTER 32.

An Act to amend the Trade Boards Act, 1909.

[8th August 1918.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) The Trade Boards Act, 1909 (in this Act referred to as "the principal Act") shall apply to the trades specified in the Schedule to that Act and to any other trades to which it has been applied by a provisional order made under section one of that Act or by a special order made under this Act by the Minister of Labour (in this Act referred to as "a special order").

Application of
the principal
Act.
9 Edw. 7. c. 22.

(2) The Minister of Labour (in this Act referred to as "the Minister") may make a special order applying the principal Act to any specified trade to which it does not at the time apply if he is of opinion that no adequate machinery exists for the effective regulation of wages throughout the trade, and that accordingly, having regard to the rates of wages prevailing in the trade, or any part of the trade, it is expedient that the principal Act should apply to that trade.

(3) If at any time the Minister is of opinion that the conditions of employment in any trade to which the principal Act applies have been so altered as to render the application of the principal Act to the trade unnecessary, he may make a special order withdrawing that trade from the operation of the principal Act.

(4) If the Minister is of opinion that it is desirable to alter or amend the description of any of the trades specified in the Schedule to the principal Act, he may make a special order altering or amending the said Schedule accordingly.

(5) Any Act confirming a provisional order made in pursuance of section one of the principal Act may be repealed or varied by a special order.

(6) Section one of the principal Act shall cease to have effect.

Provisions as
to special
orders.

2.—(1) Every special order shall without confirmation by Parliament have effect as if enacted in this Act and may be varied or revoked by a subsequent special order.

(2) The provisions contained in the First Schedule to this Act shall have effect with respect to the procedure for making special orders.

(3) Where the Minister makes any special order he shall publish it in such manner as he thinks best adapted for bringing it to the notice of all persons affected thereby, and the order shall come into operation on the date on which it is so published or on such later date as is specified in that behalf in the order.

(4) Every special order shall be laid before each House of Parliament forthwith, and if an Address is presented to His Majesty by either House within the next subsequent forty days on which that House has sat after the order has been so laid, praying that the order may be annulled, His Majesty may annul the order, and it shall thenceforth be void, but without prejudice to the validity of anything previously done thereunder or to the power of making a fresh order.

Amendments
of principal
Act with
respect to the
fixing, &c., of
minimum
rates.

3.—(1) The following provision shall be substituted for the first paragraph of subsection (1) of section four of the principal Act (which relates to the duties and powers of Trade Boards with respect to minimum rates of wages):—

"Every Trade Board shall, subject to the provisions of this section, fix a minimum rate of wages for time-

work in their trade (in this Act referred to as 'a general minimum time-rate') and may also fix for their trade—

“(a) A general minimum rate of wages for piece-work (in this Act referred to as 'a general minimum piece-rate');

“(b) A minimum time-rate (which shall not be higher than the general minimum time-rate) to apply in the case of workers employed on piece-work for the purpose of securing to such workers a minimum rate of remuneration on a time-work basis (in this Act referred to as 'a guaranteed time-rate');

“(c) A minimum rate (whether a time-rate or a piece-rate) to apply, in substitution for the minimum rate which would otherwise be applicable, in respect of hours worked by a worker in any week or on any day in excess of the number of hours declared by the Trade Board to be the normal number of hours of work per week or for that day in the trade (in this Act referred to as 'an overtime rate');

“Any of the minimum rates aforesaid may be fixed so as to apply universally to the trade or so as to apply to any special process in the work of the trade or to any special area, or to any class of workers in the trade, or to any class of workers in any special process or in any special area.”

(2) The power of a trade board under the principal Act to fix a minimum rate of wages shall include the power to fix a series of minimum rates to come into operation successively on the expiration of specified periods, and the power to vary a minimum rate shall include the power so to vary a rate that the variation shall be operative only during a specified period.

(3) The expression “minimum time-rate” in the principal Act and in this Act includes a time-rate of any kind fixed under the provisions of the principal Act.

(4) Where a Trade Board fix a minimum rate so as to apply to any class of workers in a trade they may, if they think it expedient so to do, attach to the fixing of the minimum rate the following conditions; that is to say,—

(a) A condition that workers who are members of the class must be the holders of certificates to that effect issued by the Trade Board; and

(b) If the class consists of persons who are learning the trade, such conditions as the Trade Board think necessary for securing the effective instruction of those persons in the trade.

If any condition so attached is not complied with in the case of any worker, he shall be deemed not to be a member of the class, and where a condition with respect to the holding of a certificate is so attached, the Trade Board shall issue a certificate

to a person applying therefor on production of evidence to their satisfaction that the applicant is a member of the class.

(5) Before fixing, cancelling, or varying any minimum rate of wages, not being a special minimum piece-rate, the Trade Board shall give notice of the rate which they propose to fix, or of their proposal to cancel the rate, or of the proposed variation in the rate, as the case may be, and shall consider any objections to the proposal which may be lodged with them within two months from the date of the notice:

Provided that where a rate has not been effective for a period of at least six months, the Trade Board shall not, without the consent of the Minister to be given on an application made to him by the Board for the purpose, give notice of a proposal to vary the rate, and the Minister shall not give his consent to such an application unless he is satisfied that the special circumstances of the case render it desirable that such notice should be given immediately.

(6) Where a Trade Board fix a special minimum piece-rate under subsection (5) of section four of the principal Act, or cancel or vary any rate fixed under the said subsection, they shall give to the employer notice of the fixing, cancellation, or variation, as the case may be.

(7) Where notice of a proposal to fix, cancel, or vary a minimum rate has been duly given by a Trade Board before the date of the commencement of this Act and the Board have not before that date proceeded to fix, cancel, or vary the rate, the notice shall have effect as though this Act had been in force on the date on which the notice was given and the notice had been duly given thereunder, except that objections may be lodged with the Board for a period of three months from the date of the notice.

Provisions as to
orders for con-
firming mini-
mum rate or
cancellation or
variation of
rate.

4.—(1) Where a Trade Board have fixed any minimum rate of wages, not being a special minimum piece-rate, or have cancelled or varied any such rate, they shall forthwith send notification thereof to the Minister, and the notification may include a statement as to the date as from which the Board suggest that the rate, or the cancellation or variation, should become effective.

(2) The Minister on receipt of a notification under this section with respect to any matter shall forthwith take the matter into his consideration, and, unless he thinks it necessary to refer the matter back to the Trade Board for reconsideration, shall, as soon as may be, make an order confirming the rate, or the cancellation or variation, as the case may be.

In any case where an order is to be made by the Minister under the foregoing provision he shall, unless in his opinion the special circumstances of the case make it necessary or desirable to postpone the making of the order, make the order within one month from the date on which the notification from the Trade Board is received.

(3) The Minister shall as soon as may be after he has made an order under this section send notification thereof to the Trade Board concerned, and the Trade Board shall, as soon as may be after receiving the notification, give notice of the making of the order and the contents thereof.

(4) Any such minimum rate as aforesaid, or the cancellation or variation of any such rate, shall become effective as from the date specified in that behalf in the order by which it is confirmed.

The date to be so specified shall be a date subsequent to the date of the order, and where as respects any employer who pays wages at intervals not exceeding seven days the date so specified does not correspond with the beginning of the period for which wages are paid by that employer, the rate shall become effective as from the beginning of the next such period following the date specified in the order.

(5) Sections five and seven of the principal Act (which relate respectively to orders giving obligatory effect to minimum rates of wages and to the operation of a minimum rate which has not been made obligatory) are hereby repealed :

Provided that where at the commencement of this Act any minimum rate fixed by a Trade Board has a limited operation under the provisions of the said section seven—

- (a) the provisions of subsections (2), (3), and (4) of this section shall apply as though the Trade Board had fixed the said rate on the date of the commencement of this Act, and a notification thereof had been received by the Minister on that date ; and
- (b) If the Minister does not refer the rate back to the Trade Board for reconsideration it shall, pending the making by the Minister of an order confirming the rate, continue to have a limited operation in the same manner as if this Act had not been passed ; and
- (c) If the Minister refers the rate back, he may as he thinks fit direct either that the rate shall cease to have any operation or that it shall continue to have a limited operation for such period as he may specify.

5.—(1) Where an offence for which an employer is by virtue of the principal Act liable to a fine has in fact been committed by some agent of the employer or other person, that agent or other person shall be liable to be proceeded against for the offence in the same manner as if he were the employer, and either together with, or before or after the conviction of, the employer, and shall be liable on conviction to the same punishment as that to which the employer is liable.

Amendments
of s. 6 of
principal Act.

(2) Where an employer who is charged with an offence against the principal Act proves to the satisfaction of the court that he has used due diligence to enforce the execution of the principal Act, and that the offence was in fact committed by his agent or some other person without his knowledge, consent, or connivance, he shall, in the event of the conviction of that agent or other person for the offence, be exempt from any fine in respect of the

offence, without prejudice, however, to the power of the court under subsection (2) of section six of the principal Act (which relates to the penalty for not paying wages in accordance with the minimum rate) to adjudge him to pay any sum which appears to the court to be due to the person employed on account of wages.

(3) Where the immediate employer of any worker to whom a minimum rate of wages applies is himself in the employment of some other person and that worker is employed on the premises of that other person, that other person shall for the purposes of the provisions of the principal Act relating to the penalty for not paying wages in accordance with the minimum rate be deemed to be the employer of the worker jointly with the immediate employer.

(4) The following provision shall be inserted at the end of subsection (1) of section six of the principal Act:—

“ In the foregoing provision, the expression ‘ deductions ’ includes deductions for or in respect of any matter whatsoever (other than deductions under the National Insurance Act, 1911, as amended by any subsequent enactments or deductions authorised by any Act to be made from wages in respect of contributions to any superannuation or other provident fund), and notwithstanding that they are deductions which may lawfully be made from wages under the provisions of the Truck Acts, 1831 to 1896, and where any payment being a payment authorised to be received by an employer under section one, section two, or section three of the Truck Act, 1896, is made by any employed person to his employer, the employer shall, for the purposes of the foregoing provision, be deemed to have deducted that amount from wages.”

(5) The following provisions shall be substituted for subsections (3) and (4) of section six of the principal Act:—

“(3) If a Trade Board are satisfied that any worker employed or desiring to be employed in any branch of a trade to which a general minimum time-rate, a guaranteed time-rate, or a time-work overtime rate is applicable is affected by any infirmity or physical injury which renders him incapable of earning that minimum rate and, where the worker is not already employed on piece-work, are of opinion that the case cannot suitably be met by employing him on piece-work, the Trade Board may, if they think fit, grant to the worker, subject to such conditions, if any, as they prescribe, a permit exempting the employment of the worker from the provisions of this Act relating to the payment of wages at less than the minimum rate, and while the permit is in force the employer shall not be liable for paying wages to the worker at a rate less than the minimum rate so long as the conditions prescribed by the Trade Board on the grant of the permit are complied with.

1 & 2 Geo. 5.
c. 55.

59 & 60 Vict.
c. 44.

"A Trade Board may, if they think fit, delegate their powers under this subsection to a committee consisting of such number of persons, being members of the Board, as the Board may think fit, so, however, that the members of the Board on the committee representing employers and the members of the Board on the committee representing workers shall be in equal proportions.

"(4) It shall be the duty of every employer in a trade to which a minimum rate is applicable, to keep such records of wages as are necessary to show that the provisions of this Act are being complied with as respects persons in his employment, and if he fails to do so he shall be liable on summary conviction in respect of each offence to a fine not exceeding two pounds, and also to a fine not exceeding one pound for every day during which the default continues after conviction.

"On any prosecution of a person for failing to pay wages at not less than the minimum rate, it shall lie on that person to prove that he has not paid wages at less than the minimum rate."

6. The following section shall be substituted for section eight of the principal Act (which relates to the case of persons employed on piece-work where a general minimum time-rate but no general minimum piece-rate has been fixed):—

Amendment
of s. 8 of
principal Act.

"(1) An employer shall, in cases where persons are employed on piece-work and a general minimum time-rate but no general minimum piece-rate has been fixed, be deemed to pay wages at less than the minimum rate—

- (a) in cases where a special minimum piece-rate has been fixed under the provisions of this Act for persons employed by that employer, if the rate of wages is less than that special minimum piece-rate; and
- (b) in cases where a special minimum piece-rate has not been so fixed, unless he shows that the piece-rate of wages paid would yield, in the circumstances of the case, to an ordinary worker at least the same amount of money as the basis rate.

"(2) For the purpose of this section the expression 'basis rate' means the general minimum time-rate or, where a rate (in this Act referred to as a 'piece-work basis time-rate') has been fixed by the Trade Board for the purpose of being substituted for the general minimum time-rate as the basis rate, the rate so fixed.

A Trade Board may fix a piece-work basis time-rate in any case in which, having regard to all the circumstances of the case, they are of opinion that the general minimum time-rate does not form a proper basis for the purposes of paragraph (b) of subsection (1) of this section, and a piece-work basis time-rate may be higher or lower than

the general minimum time-rate and may be fixed so as to apply universally to the trade or so as to apply to any special process in the work of the trade or to any special area, or to any class of workers in the trade or to any class of workers in any special process or in any special area."

Employers not to receive premiums where minimum rates in force.

7.—(1) Where a worker in any trade, being a person to whom a minimum rate of wages fixed by a Trade Board applies, is an apprentice or learner, it shall not be lawful for his employer to receive directly or indirectly from him, or on his behalf or on his account, any payment by way of premium :

Provided that nothing in the foregoing provision shall apply to any such payment duly made in pursuance of any instrument of apprenticeship not later than four weeks after the commencement of the employment.

(2) If any employer acts in contravention of this provision, he shall be liable on summary conviction in respect of each offence to a fine not exceeding twenty pounds, and the court may by the conviction, in addition to imposing a fine, adjudge him to repay to the worker or other person by whom the payment was made the sum improperly received by way of premium.

Worker waiting for work on employer's premises to be deemed to be employed.

8. For the purpose of calculating the amount of the wages payable in the case of a worker employed on any work for which a minimum rate of wages has been fixed under the principal Act, the worker shall be deemed to have been employed during all the time during which he was present on the premises of the employer, unless the employer proves that he was so present without the employer's consent express or implied, or that he was so present for some purpose unconnected with his work and other than that of waiting for work to be given to him to perform, and in the case of a worker employed on piece-work shall be deemed during any time during which he was so present and was not doing piece-work to have been employed at the general minimum time-rate applicable to workers of the class to which he belongs :

Provided that—

- (a) where a worker resides on the premises of the employer he shall not be deemed to be employed during any time during which he is present on the premises by reason only of the fact that he is so resident ; and
- (b) a worker while present during normal meal times in a room or place in which no work is being done shall be deemed to be present for a purpose unconnected with his work.

Miscellaneous provisions with respect to legal proceedings.

9.—(1) Where an employer has been convicted under section six of the principal Act for failing to pay wages at not less than the minimum rate to any worker, then, if notice of intention so

to do has been served with the summons, warrant, or complaint, evidence may be given of any failure on the part of the employer to pay wages at not less than the minimum rate to that worker at any time during the two years immediately preceding the date on which the information was laid or the complaint was served, and on proof of the failure the court may order the employer to pay such sum as in the opinion of the court represents the difference between the amount which, having regard to the provisions of the principal Act, ought properly to have been paid to the worker by way of wages during those years and the amount actually so paid.

(2) Where it appears to a Trade Board, or to any officer appointed under the principal Act or to any officer of any Government Department for the time being assisting in carrying the principal Act into effect, that any sum is due by an employer to a worker by reason of the fact that wages have been paid to that worker at less than the minimum rate applicable, and that it is not possible to recover the sum so appearing to be due, or some part of that sum, by means of proceedings under section six of the principal Act, the Trade Board, or that officer, if he is authorised in that behalf by special or general directions of the Minister, may, if it appears expedient so to do by reason of the refusal or neglect of the worker to take the necessary proceedings, on behalf of and in the name of the worker institute civil proceedings before any court of competent jurisdiction for the recovery of the said sum :

Provided always that the court before which any such civil proceedings are instituted by a Trade Board or by any such officer as aforesaid shall have the same power to make an order for the payment of costs by that Board or officer as if that Board or officer were a party to the proceedings.

(3) It shall be no objection to the competency of a person to give evidence as a witness in proceedings in Scotland under the principal Act that the proceedings are brought at the instance of or have been instituted by that person, or are prosecuted or conducted by him.

10. A Trade Board for any trade may, if they think it expedient so to do, make a recommendation to any Government Department with reference to the industrial conditions of the trade, and the Department to whom the recommendation is made shall forthwith take it into consideration.

Power of Trade Boards to make recommendations to Government Departments.

11. The amendments specified in the second column of the Second Schedule to this Act, which relate to minor details, shall be made in the provisions of the principal Act specified in the first column of that Schedule.

Minor amendments of principal Act.

12. Section one of the Rules Publication Act, 1893, (which requires notice to be given of a proposal to make statutory rules) shall not apply to any regulations made under section eleven, section twelve, or section eighteen of the principal Act, or under paragraph nine of the First Schedule to this Act.

Rules Publication Act, 1893, not to apply to certain regulations under Trade Boards Acts, 56 & 57 Vict. c. 66.

Short title.
commence-
ment, con-
struction, and
repeal.

13.—(1) This Act may be cited as the Trade Boards Act, 1918, and shall be read as one with the principal Act, and that Act and this Act may be cited together as the Trade Boards Acts, 1909 and 1918.

(2) This Act shall come into operation on the first day of October, nineteen hundred and eighteen.

(3) Unless the context otherwise requires, any reference in this Act to the principal Act, or any provision of the principal Act, which is amended by this Act, shall be construed as a reference to the principal Act, or that provision, as amended by this Act.

(4) The provisions of the principal Act specified in the Third Schedule to this Act are hereby repealed :

Provided that all rates fixed under any provision of the principal Act repealed by this Act, and being obligatory at the commencement of this Act, shall, notwithstanding the repeal, continue in force and shall be deemed to have been fixed under the principal Act as amended by this Act and may be varied or cancelled accordingly.

S C H E D U L E S.

FIRST SCHEDULE.

Section 2.

PROCEDURE FOR MAKING SPECIAL ORDERS.

1. Before the Minister makes any special order, he shall, in such manner as he thinks best adapted for informing persons affected, publish notice of his intention to make the order, of the place where copies of the draft order may be obtained, and of the time (which shall not be less than forty days) within which any objection made with respect to the draft order must be sent to him.

2. Every objection must be in writing, and must state—

- (a) the specific grounds of objection ; and
- (b) the omissions, additions, or modifications asked for.

3. The Minister shall consider any objection which is made by or on behalf of any persons appearing to him to be affected and which is sent to him within the time fixed in that behalf, but shall not be bound to consider any other objection.

4. After considering all the objections which he is required to consider as aforesaid, the Minister may, if he thinks fit, amend the draft order, and the foregoing provisions of this schedule shall apply to the amended draft order in like manner as they apply to an original draft order.

5. In any case in which the Minister does not amend or withdraw any draft order to which any objection has been made in accordance with the foregoing provisions, he shall, before making the order, unless he considers that the objection is of a frivolous character, direct an inquiry to be held in manner hereinafter provided.

6. The Minister may appoint a competent person not in the employment of any Government Department to hold an inquiry with regard to any draft order, and to report to him thereon.

7. The inquiry shall be held in public, and such officer of the Ministry of Labour as is appointed by the Minister in that behalf, and any objector or other person who appears to the person holding the inquiry to be affected, may appear at the inquiry either in person or by counsel, solicitor, or agent.

8. The witnesses at the inquiry may, if the person holding it thinks fit, be examined on oath.

9. Subject as aforesaid, the inquiry and all proceedings preliminary and incidental thereto shall be conducted in accordance with regulations made by the Minister.

10. The fee to be paid to the person holding the inquiry shall be such as the Minister may direct, and shall be deemed to be part of the expenses of the Minister in the execution of the principal Act.

SECOND SCHEDULE.

Section II.

MINOR AMENDMENTS OF PRINCIPAL ACT.

Enactment to be amended.	Nature of Amendment.
Section 4	- In the second paragraph of subsection (1) the words "a general minimum time-rate", and in subsection (5) the words "a general minimum time-rate or a piece-work basis time-rate", shall be substituted for the words "a minimum time-rate."
Section 6	- For the words "been made obligatory by order of the Board of Trade under this Act" in subsection (1), there shall be substituted the words "become effective."
Section 10	- Subsection (2) shall cease to have effect.
Section 12	- The words "if the district trade committee so think fit, of sub-committees" shall be substituted in subsection (2) for the words from "of a standing sub-committee" to the end of the subsection. In subsection (3) the words "or any sub-committee thereof" shall be inserted after the words "delegate to a district trade committee," and the words "their duty" "to fix a general minimum time-rate and their power" "to fix a general minimum piece-rate, a guaranteed time-rate, a piece-work basis time-rate, and an over-time rate" shall be substituted for the words from "their power" to the end of the subsection. In subsection (4) the words "general minimum time-rates" shall be substituted for the words "minimum time-rates," and the words "guaranteed time-rates, "piece-work basis time-rates, and overtime rates" shall be inserted after the words "piece-rates."

Enactment to be amended.	Nature of Amendment.
Section 12—<i>cont.</i> The following new subsection shall be inserted at the end of the section :— “(5) The proceedings of a district trade committee shall not be invalidated by any vacancy in their number, or by any defect in the appointment of any member of the committee.”	
Section 15 - The following paragraph shall be added at the end of subsection (1)— “(e) to examine, either alone or in the presence of any other person, as he thinks fit, with respect to any matters under this Act any person whom he finds in any factory or workshop or any place used for giving out work to outworkers, or whom he has reasonable cause to believe to be or to have been a worker in any trade to which a minimum rate under this Act is applicable, and to require every such person to be so examined, and to sign a declaration of the truth of the matters in respect of which he is so examined.” In subsection (2) the word “makes, or causes to be made, or knowingly allows to be made” shall be substituted for the word “produces,” and after the word “outworkers” there shall be inserted the words “which is false in any material particular, or produces or causes to be produced or knowingly allows to be produced any such sheet, record, or list.”	

Section 13.

THIRD SCHEDULE.

PROVISIONS OF PRINCIPAL ACT REPEALED.

- Section one.
 Subsections (2) and (3) of section four and the proviso to subsection (4).
 Section five.
 Section seven.
 Subsection (2) of section ten.
 In paragraph (4) of section twenty-one the words from “including the expenses” to the end of the section.